



February 28, 2025

Office of Governor Glenn Youngkin
Constituent Services
P.O. Box 1475
Richmond, VA 23218

RE: VETO REQUEST – SB 754

Dear Governor Youngkin:

On behalf of the advertising industry, we respectfully ask that you **VETO** SB 754.¹ We and the companies we represent, many of whom do substantial business in Virginia, strongly believe consumers deserve meaningful privacy protections supported by reasonable government policies and responsible industry practices. However, SB 754 is likely to have unintended and undesirable consequences for residents of Commonwealth, in particular for new parents and other families. In addition, the bill is confusing, as it would enact privacy requirements outside of the scope of the state's existing consumer privacy law, the Virginia Consumer Data Protection Act ("VCDPA"). The bill would also permit a private right of action, which is an ineffective method of enforcement for privacy harms. We therefore ask you to **VETO** SB 754.

- **SB 754 will have unintended consequences that will increase costs for families in Virginia.** SB 754's broad definition would sweep in basic data points, such as the fact that a consumer purchased diapers, signed up to receive promotional notices about infant clothing or formula sales in preparation for the arrival of their newborn child, or is a frequent purchaser of baby formula at a local grocer. When paired with the bill's onerous consent requirements, SB 754 could prevent the delivery of coupons, discounts, and other helpful information related to newborn products, items intended to assist in pregnancy, and child-friendly foods from being delivered to Virginia parents. The unintended, but actual result of this bill will be to raise costs for Virginia families.
- **SB 754 is confusing when considered alongside the VCDPA.** SB 754 proposes to address data privacy-related matters outside of the scope of the VCDPA, Virginia's consumer data privacy law. The VCDPA already provides strong protections for some of the data subject to SB 754, including a requirement to obtain consumer consent to process sensitive data. SB 754 is therefore confusing, because the bill would place a new privacy requirement in an area of the Virginia Code that otherwise has no relation to privacy.
- **SB 754 permits a private right of action.** The VCDPA appropriately vests authority to enforce against data privacy violations with the Attorney General. By amending the Virginia Consumer Protection Act, SB 754 would permit a private right of action for data privacy

¹ Virginia SB 754 (2025 Reg. Sess.), located [here](#).



violations. Private rights of action should have no place in privacy legislation, as they benefit opportunistic trial lawyers and plaintiff's law firms rather than protect the privacy of consumers. Studies show that only a fraction of any redress from private actions makes it way to affected consumers. Instead, the vast majority of damages go to plaintiff lawyers.² A private right of action in SB 754 will also hinder innovation in Virginia and could even cause businesses of all sizes to decline to operate in the state due to the threat of exorbitant legal costs.

Bills like SB 754 should be vetoed. While we agree that Virginians deserve privacy protections supported by reasonable laws and responsible industry practices, SB 754 would codify unnecessary and confusing restrictions that will harm Virginians.

We strongly urge you to **VETO SB 754.**

* * *

Thank you in advance for your consideration of this request.

Sincerely,

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² See, e.g., American Tort Reform Foundation, *State Consumer Protection Laws Unhinged: It's Time to Restore Sanity to the Litigation 4* (2003), located [here](#); see also U.S. Chamber Institute for Legal Reform, *Ill-Suited: Private Rights of Action and Privacy Claims* 7-8 (Jul. 2019), located [here](#).